



Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

REGULAR SESSION HELD ON 21 MAY 2018

PRESENT:

Hon. Edison R. Bilog, *City Vice-Mayor and Presiding Officer*;
Hon. Leandro B. Yangot Jr., *Member*;
Hon. Edgar M. Avila, *Member*;
Hon. Joel A. Alangsab, *Member*;
Hon. Elmer O. Datuin, *Member*;
Hon. Maria Mylen Victoria G. Yaranon, *Member*;
Hon. Elaine D. Sembrano, *Member*;
Hon. Peter C. Fianza, *Member*;
Hon. Lilia A. Fariñas, *Member*;
Hon. Arthur L. Allad-iw, *Member*;
Hon. Benny O. Bomogao, *Member*;
Hon. Francisco Roberto A. Ortega VI, *Member*; and
Hon. Michael L. Lawana, *Ex-Officio Member (President, Liga ng mga Barangay, Baguio City Chapter)*.

ABSENT:

Hon. Faustino A. Olowan, *Member (with prior notice)*.

VACANT:

Ex-Officio Member (*President, Pederasyon ng mga Sangguniang Kabataan, Baguio City Chapter*).

Authored by
Hon. Arthur L. Allad-iw,
Hon. City Vice-Mayor Edison R. Bilog,
Hon. Leandro B. Yangot Jr.,
Hon. Edgar M. Avila,
Hon. Joel A. Alangsab,
Hon. Faustino A. Olowan,
Hon. Elmer O. Datuin,
Hon. Maria Mylen Victoria G. Yaranon,
Hon. Elaine D. Sembrano,
Hon. Peter C. Fianza,
Hon. Lilia A. Fariñas,
Hon. Benny O. Bomogao,
Hon. Francisco Roberto A. Ortega VI, and
Hon. Michael L. Lawana; and
considered jointly and collectively.

ORDINANCE Numbered 69
(Series of 2018)

SUPPORTING THE CONDUCT OF AN EXTENSIVE MEDICAL
SERVICES EXCLUSIVELY FOR WOMEN WITH DISABILITIES
AND APPROPRIATING FUNDS THEREOF

Explanatory Note

Article 6 of the UNITED NATIONS CONVENTION ON RIGHTS OF PERSONS WITH DISABILITIES requires and challenges States parties to go beyond taking anti-discriminatory actions to adopting measures aimed at the development, advancement and empowerment of women and girls with disabilities.

Likewise, Republic Act 7277, otherwise known as the MAGNA CARTA FOR DISABLED PERSONS, provides that the State shall adopt policies ensuring rehabilitation, self-development and self-reliance of disabled Persons and their integration into the mainstream of society.

The BIWAKO MILLENNIUM FRAMEWORK FOR ACTION TOWARDS AN INCLUSIVE, BARRIER-FREE AND RIGHTS-BASED SOCIETY FOR PERSONS WITH DISABILITIES IN ASIA AND THE PACIFIC advocates the enactment and/or enforcement of legislation and policies related to equal opportunities and treatment of persons with disabilities and their rights to equity in education, health, information and communications, training and employment, social services and other areas.

Republic Act 9710, otherwise known as the MAGNA CARTA OF WOMEN, provides that the State affirms women's rights as human rights and shall intensify its efforts to fulfill its duties under international and domestic law to recognize, respect, protect, fulfill and promote all human rights and fundamental freedoms of women, especially marginalized women, in the economic, social, political, cultural, and other fields without distinction or discrimination on account of disability, among others.

City Ordinance Numbered 24, Series of 2017 [INSTITUTIONALIZING THE CONDUCT OF DISABILITY-RELATED ACTIVITIES/CELEBRATIONS IN THE CITY OF BAGUIO AND MAKING IT AN ANNUAL ACTIVITY OF THE CITY AND APPROPRIATING FUNDS THEREOF.] designated the last Monday of March of every year as Women with Disabilities Day and among the activities/celebrations included under Section 5 of the said Ordinance is "Medical and Dental Mission exclusively for differently-abled persons".

Laws and policies addressing women who have traditionally used the term “women” in general application disregarding the fact that women with disabilities have special needs compared with the so called normal women.

Women with disabilities face significant difficulties or barriers in attaining access to adequate health care including sexual and reproductive health services, among others, and are more likely to institutionalize.

NOW, THEREFORE, on motion of Hon. Allad-iw, Hon. Ortega VI and Hon. Yaranon, seconded by Hon. Yangot, Hon. Fariñas, Hon. Alangsab and Hon. Avila,

BE IT ORDAINED BY THE *SANGGUNIANG PANLUNGSOD* (CITY COUNCIL) IN SESSION ASSEMBLED THAT:

SECTION 1. **TITLE** - This ordinance shall be known as AN ORDINANCE SUPPORTING THE CONDUCT OF AN EXTENSIVE MEDICAL SERVICES EXCLUSIVELY FOR WOMEN WITH DISABILITIES AND APPROPRIATING FUNDS THEREOF.

SECTION 2. **DEFINITION** - As used in this Ordinance,

- a) Women With Disability - refers to all women, girls and adolescents who are Differently-abled/Other-abled.
- b) Differently-abled/Other-abled Persons - This Ordinance adopts the basic definition of the term “Disabled Persons” as stated under Republic Act No. 7277, otherwise known as the ‘Magna Carta For Disabled Persons’, Batas Pambansa Blg. 344, otherwise known as the “Accessibility Law” and other related laws. However, to be more sensitive, the word “Differently-abled/ Other-abled persons” instead of “disabled persons” shall be used as these people are not totally disabled.

Thus, Differently-abled/ Other-abled Persons shall be defined as: Persons suffering from restrictions of different abilities, as a result of mental, physical or sensory impairment, in performing an activity in the manner or within the range considered normal for a human being.”

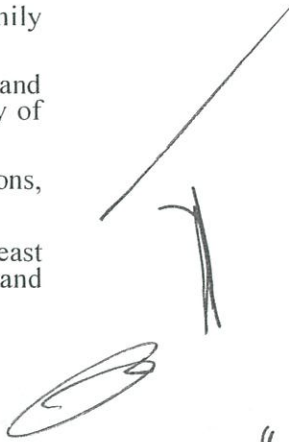
“Disability” shall mean either a “physical or mental impairment that substantially limits one or more psychological, physiological or anatomical function of an individual or activities of such individuals; or a record of such impairment; or being regarded as having such impairment.”

SECTION 3. **IMPLEMENTATION** - The City Government of Baguio through the Persons with Disabilities Affairs Office (PDAO) under the Mayor’s Office, or the City Social Welfare and Development Office in coordination with other concerned agencies shall provide (a) Comprehensive Health Services, and (b) Comprehensive Health information and Education exclusively for the women with disability as part of the celebration of Women with Disabilities Day every last Monday of March every year.

- a) **COMPREHENSIVE HEALTH SERVICES** - The City Government of Baguio shall, at all times, provide for a comprehensive, culture-sensitive, and gender-responsive health services and programs covering all stages of a woman’s life cycle and which addresses the major causes of women’s mortality and morbidity: Provided: That in the provision for comprehensive health services, due respect shall be accorded to women’s religious convictions, the rights of the spouses to found a family in accordance with their religious convictions, and the demands of responsible parenthood, and the right of women to protection from hazardous drugs, devices, interventions, and substances.

Access to the following services shall be ensured:

- a.1. Maternal care to include pre and post-natal services to address pregnancy and infant health and nutrition;
- a.2. Promotion of breastfeeding;
- a.3. Responsible, ethical, legal, safe and effective methods of family planning;
- a.4. Family and state collaboration in youth sexuality education and health services without prejudice to the primary right and duty of parents to educate their children;
- a.5. Prevention and management of reproductive tract infections, including sexually transmitted diseases, HIV, and AIDS;
- a.6. Prevention and management of reproductive tract cancers like breast and cervical cancers, and other gynecological conditions and disorders;



- a.7. Prevention of abortion and management of pregnancy-related complications;
 - a.8. In cases of violence against women and children, women and children victims and survivors shall be provided with comprehensive health services that include psychosocial, therapeutic, medical, and legal interventions and assistance towards healing, recovery, and empowerment;
 - a.9. Prevention and management of infertility and sexual dysfunction pursuant to ethical norms and medical standards;
 - a.10. Care of the elderly women beyond their child-bearing years; and
 - a.11. Management, treatment, and intervention of mental health problems of women and girls. In addition, healthy lifestyle activities are encouraged and promoted through programs and projects as strategies in the prevention of diseases.
- b) Comprehensive Health Information and Education - The City Government of Baguio shall provide women in all sectors with appropriate, timely, complete, and accurate information and education on all the above-stated aspects of women's health in government education and training programs, with due regard to the following:
- b.1. The natural and primary right and duty of parents in the rearing of the youth and the development of moral character and the right of children to be brought up in an atmosphere of morality and rectitude for the enrichment and strengthening of character;
 - b.2. The formation of a person's sexuality that affirms human dignity; and
 - b.3. Ethical, legal, safe, and effective family planning methods including fertility awareness.

SECTION 4. **FUNDING** - The funding shall be determined by the Offices mentioned in Section 3 hereof.

SECTION 5. **SEPARABILITY CLAUSE** - If any provision or section of this Ordinance, or the application thereof to any person or circumstance is held invalid, the other provisions or sections of this Ordinance and the application of such circumstance shall not be affected thereby.

SECTION 6. **REPEALING CLAUSE** - All prior Ordinances, Executive Orders, Administrative Orders, Rules and Regulations, or part/s thereof that are inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 7. **EFFECTIVITY CLAUSE** - This Ordinance shall take effect in accordance with the Local Government Code of 1991, as amended.

Passed.

Hon. Sembrano was out of the Session Hall during the deliberation and voting on the matter.

CERTIFIED CORRECT:


EDISON R. BILOG
City Vice-Mayor and
Presiding Officer
MAY 28 2018

Attested:


BRENNER L. BENGWAYAN
Secretary to the Sanggunian

APPROVED:


MAURICIO G. DOMOGAN
City Mayor
28 MAY 2018


JENNIFER WEYGAN-MARTIN